

CHAPTER XII.

Setting Down the Cause.

Publication having passed, the cause is set down to be argued, as follows:

Whereas the present practice, that causes can only be entered for hearing during the sittings, is productive of delay and inconvenience: It is ordered that from henceforth causes may be set down for hearing, and demurrers for argument, and the subpoenas *ad audiendum judicium* returnable on any day. The party setting down a cause to be heard must sue out a subpoena to hear judgment, which writ shall be tested on the day on which such cause shall have been set down, and shall be made returnable in one month from the test; it must be served on all necessary parties at least seven days before that on which it is returnable. So soon as any cause shall have been set down, it shall be entered by the Registrar on the list of causes for hearing, and shall be called on and heard on the day for which it shall have been so set down, or so soon thereafter as the causes standing before it shall have been disposed of.

The cause must be set down by the plaintiff, unless he neglect to set it down within four weeks after publication has passed, and in that case any defendant can, unless he desires to move to dismiss the Bill, set down the cause to be heard under the following Order:

If after publication passed the plaintiff neglects to set down the cause to be heard, any defendant, after the expiration of four weeks, may set the same down at his own request, instead of proceeding to dismiss the Bill for want of prosecution, and may obtain a subpoena to hear judgment, and serve the same on the parties to the cause.

1850.
LXIX.
Setting down
cause.

Seven days'
notice.

1850.
LXVI.
Defendant may
set down cause
after four
weeks.